



Republic of the Philippines  
**DEPARTMENT OF LABOR AND EMPLOYMENT**  
Intramuros, Manila



DEPARTMENT ORDER NO. 40-J  
Series of 2022

JUL 19 2022 15:14  
DOLE-AS

**AMENDING RULE VII OF THE IMPLEMENTING RULES OF BOOK V  
OF THE LABOR CODE OF THE PHILIPPINES AS AMENDED BY  
DEPARTMENT ORDER NO. 40, SERIES OF 2003**

**SECTION 1.** Pursuant to Article 5 of the Labor Code of the Philippines, as amended, Rule VII of Department Order No. 40, Series of 2003 amending the Implementing Rules of Book V of the Labor Code of the Philippines is hereby further amended as follows:

“Section 1. **WHO MAY FILE.** – Any legitimate labor organization may file a request for SEBA certification in the Regional Office which issued its certificate of registration or certificate of creation of chartered local.

Section 2. Requirements for Request of SEBA Certification. – The request for certification shall indicate:

- a. the name, address, **AND CONTACT DETAILS** of the **REQUESTING UNION OR LOCAL**;
- b. the name, address, **AND CONTACT DETAILS** of the company where it operates;
- c. the bargaining unit sought to be represented;
- d. the approximate number of employees in the bargaining unit; and
- e. the statement of the existence/non-existence of other labor organization/CBA.

**A COPY OF THE CERTIFICATE OF REGISTRATION OR CERTIFICATE OF CREATION OF CHARTERED LOCAL SHALL BE ATTACHED TO THE REQUEST.**

Section 3. Action on the request. – Within one (1) day from the submission of the request, the Regional Director shall:

- a. determine whether the request is compliant with the preceding section and whether the bargaining unit sought to be represented is organized or not; and
- b. **DIRECT THE MANAGEMENT TO SUBMIT A CERTIFIED TRUE** copy of the payroll for purposes of SEBA certification pursuant to Section 4 of this Rule. **THE PAYROLL SHALL BE SUBMITTED BY THE MANAGEMENT ON OR BEFORE THE DATE OF THE FIRST VALIDATION CONFERENCE. THE PAYROLL SHALL INDICATE AMONG OTHERS THE POSITION OF THE EMPLOYEE, DATE HIRED, AND MANNER OF PAYMENT OF WAGES.**

**IF THE REGIONAL DIRECTOR finds THE REQUEST deficient, THE REGIONAL DIRECTOR shall NOTIFY the REQUESTING UNION OR LOCAL to comply within ten (10) WORKING days from RECEIPT OF notice. Failure to comply within the prescribed period shall be deemed withdrawal of the request for SEBA certification. IF SUFFICIENT, THE REGIONAL**

**DIRECTOR SHALL CALL FOR A VALIDATION CONFERENCE AS PROVIDED IN THE SUCCEEDING PROVISION.**

Section 4. Request for certification in unorganized establishment with only one (1) legitimate labor organization; Validation proceedings. - If the Regional Director finds the establishment unorganized with only one legitimate labor organization, he/she shall call a conference within five (5) **WORKING DAYS** for the submission of the following:

- a. the names of employees in the **PROPOSED** covered bargaining unit who signify their support for the certification, provided that said employees comprise at least majority of the number of employees in the covered bargaining unit; and
- b. certification under oath by the President of the **REQUESTING UNION OR LOCAL** that all documents submitted are true and correct based on his/her personal knowledge.

The submission shall be presumed to be true and correct unless contested under oath by any member of the bargaining unit during the validation conference. For this purpose, the employer or any representative of the employer shall not be deemed a party-in-interest but only as a by-stander to the process of certification.

**SHOULD THE MANAGEMENT FAIL OR REFUSE TO PROVIDE THE PAYROLL DURING THE VALIDATION CONFERENCE, DESPITE THE DIRECTIVE BY THE REGIONAL DIRECTOR, THE LIST OF EMPLOYEES IN THE BARGAINING UNIT AS CERTIFIED UNDER OATH BY THE UNION PRESIDENT, OR ANY SIMILAR DOCUMENT PROVIDED BY THE REQUESTING UNION OR LOCAL THAT MAY AID THE REGIONAL DIRECTOR, SHALL BE USED IN THE VALIDATION CONFERENCE.**

If the **REQUESTING UNION OR LOCAL, WITHOUT VALID REASON**, fails to complete the requirements for SEBA certification during the **VALIDATION** conference, the request for SEBA certification shall be referred to the Election Officer for the conduct of certification election pursuant to Rule IX of this Rules. **PROVIDED, HOWEVER, THAT A REQUESTING UNION OR LOCAL WHO JUSTIFIABLY FAILS TO COMPLETE THE REQUIREMENTS SHALL HAVE TEN (10) WORKING DAYS FROM NOTICE TO COMPLY THE SAME.**

**THE VALIDATION PROCEEDINGS SHALL NOT EXCEED A TOTAL OF FIFTEEN (15) WORKING DAYS FROM THE DATE OF THE FIRST VALIDATION CONFERENCE.**

Section 4.1. Action on the submission. - If the Regional Director finds the requirements complete, he/she shall issue **WITHIN THREE (3) WORKING DAYS TO THE REQUESTING UNION OR LOCAL** a certification as sole and exclusive bargaining agent enjoying the rights and privileges of a **SOLE AND** exclusive bargaining agent of all the employees in the covered bargaining unit.

The Regional Director **AND/OR THE REQUESTING UNION OR LOCAL** shall cause the posting of the SEBA certification for fifteen (15) consecutive days in at least two (2) conspicuous places in the establishment or covered bargaining unit."

**SECTION 2.** All rules, regulations, issuances, circulars, and administrative orders inconsistent herewith are repealed or modified accordingly.

**SECTION 3.** This Order shall take effect fifteen (15) days after its publication in a newspaper of general circulation.

Manila, Philippines, 01 APR 2022.

  
SILVESTRE H. BELLO III  
Secretary

Dept. of Labor & Employment  
Office of the Secretary

